

****25.08.2021****

****Fine under Law no. 190/2018****

The National Supervisory Authority has completed an investigation in July of the current year at the Association of Road Assistance A-Car Vaslui, an operator subject to the provisions of art. 2 para. (1) lit. a) of Law no. 190/2018.

The investigation was initiated following a complaint regarding the fact that the Association of Road Assistance A-Car Vaslui processes personal data of minors (image) through the website www.a-carvaslui.ro.

Since during the investigation the operator did not respond to the requests of our institution, it was first sanctioned with a warning for violating art. 58 para. (1) lit. a) and lit. e) of Regulation (EU) 2016/679, based on art. 13 of Law no. 190/2018.

Additionally, the National Supervisory Authority issued the Remediation Plan provided by art. 13 para. (1) of Law 190/2018, with the measure to provide all information requested by our institution within 5 working days from the date of communication of the minutes.

The Association of Road Assistance A-Car Vaslui did not comply with the measures set out in the remediation plan communicated by the National Supervisory Authority, thus violating the provisions of art. 58 para. (1) lit. a) and lit. e) of Regulation (EU) 2016/679.

As such, based on art. 14 para. (1) of Law no. 190/2018, the operator was sanctioned with a fine in the amount of 10,000 lei, for the act provided by art. 14 para. (5) lit. e) of Law no. 190/2018, in relation to art. 58 para. (1) lit. a) and lit. e) of Regulation (EU) 2016/679.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****